



DECISION

Complaint No. : POS/357/KE-25

Name and Address of the Complainant : Dr. Capt. Zahid Iqbal, R/o. 55-Q/2, P.E.C.H.S, Chanesar Town, District East, Karachi.

Name of the Agency Complained against : Lyari Development Authority

Name & Designation of Investigation Officer : Syed Farrukh Habib
Director, Regional Office, Karachi (East)

Subject :- **ALLEGED INACTION ON APPLICATIONS MADE BY COMPLAINANT TO LDA FOR RE-ALLOCATION/ALTERNATE PLOT IN LIEU OF PLOT NO. R-258, BLOCK-27-C, HAWKS BAY SCHEME-42, LDA.**

THE COMPLAINT

Dr. Capt. Zahid Iqbal in his complaint dated 06.05.2025 stated that he purchased a plot bearing No. R-258, Block-27-C, KDA Hawksbay Scheme 42 and got it transferred in his name. Later, the scheme was transferred to LDA, which without any reason and prior notice gulped his plot in 2020. Since then, he is approaching and submitting applications to LDA for any alternative solution but to no avail. He, therefore, solicited intervention of this office in the matter.

PROCEEDINGS

2. After admission of complaint under Section 10 of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991, (amended up to date), as well as after receiving mandatory Affidavit on Form "A" and other relevant documents, report was called from the Agency. In response the Assistant Director (Land), Lyari Development Authority vide letter dated 16.06.2025 stated that the plot No. R-258, Sector No. 27-C was allotted to Mr. Abdul Jaleel S/o. Wazir Muhammad through KDA Employees Quota. Mr. Abdul Jaleel S/o. Wazir Mohammad has given General Power of Attorney in favor of Mr. Zahid Iqbal S/o. Muhammad Siddique vide MF Roll No. U-35705/4262 dated 08-05-2007. Mr. Zahid Iqbal S/o. Muhammad Siddique transferred the above said plot in favor of Mr. Syed Tanvir Alam S/o. Syed Muhammad Naseer and transfer order was issued vide Diary No.749 dated 18-09-2012. Mr. Syed Tanvir Alam S/o. Syed Muhammad Naseer transferred the above said plot in favor of Mr. Zahid Iqbal S/o. Muhammad Siddique and transfer order was issued vide Diary No.828 dated 07-05-2014. The report further mentioned that as per revised planning of Sector No.27-C, the plot No. R-258, Sector No.27-C is in drain (NALA). The Land Department has also put up note sheet to the higher ups for further necessary action in this case. All such type of cases are in process for decision of Governing Body of LDA.

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3. To further ascertain facts, the Investigating Officer fixed the case for hearing the parties on 09.07.2025, which was attended by Mr. Muneer Shah, Assistant Director on behalf of LDA. The Agency's representative admitted that complainant is Bonafide transferee of Plot No. R-258, Sector 27-C, Hawks Bay Scheme of LDA, but due to revised planning the plot has come into alignment of drain (Nallah). LDA is willing to adjust/accommodate complainant by allotting alternate plot for which process is underway for which the case has been put up through a note sheet to the competent authority for decision and also all similar cases are currently pending decision before the governing body of LDA. As and when formalities are completed, complainant will be accommodated accordingly.

FINDINGS

4. I have examined the case file and perused correspondence, reports and rejoinders etc., and found that:

- i. The complainant is admittedly lawful transferee of Plot No. R-258, Sector 27-C, Hawks Bay Scheme, LDA.
- ii. LDA failed to give him the physical possession of his plot citing reason of change in planning, due to which plot came into the revised alignment of drain/Nallah.
- iii. In reality, the natural alignment of Nala has been the same since well before initiation of scheme. The Agency first erred by not taking into consideration of Drain/Nala, which follows its natural course and planned plots over it. Secondly, when preparing revised plan, it used the land adjoining the Nala for creating more smaller plot, instead of first accommodating those allottees whose plots had been disturbed/affected as a result of revision.
- iv. The Agency has kept promising the complainant that an alternate plot will be allotted to him, once the policy decision is taken by the governing body of LDA.

DECISION

5. In view of the above and in exercise of powers conferred upon me vide section 11 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended up to date) I direct the Director General, Lyari Development Authority to allot an alternate plot to the complainant of the same size at similar location within 60 days from the date of receipt of this decision in lieu of his original allotment.

Given under my hand and seal of the office



Sd /-
(Muhammad Sohail Rajput)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh

Karachi, dated 30-10-2025